STATE OF NEW YORK
COUNTY OF WESTCHESTER: WHITE PLAINS FAMILY COURT
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IN THE MATTER OF:

TARA KATELYN WALSH,
Petitioner,
- vs. -
STEPHEN GRANT RUSSELL,
Respondent.

FILE NO: 154703
DOCKET NO.: O-12635-19
O-12635-19/20F
V-07641-18
V-07641-18/19F
V-07641-18/20M

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STEPHEN GRANT RUSSELL,
Petitioner,
- vs. -
TARA KATELYN WALSH,
Respondent.

DOCKET NO.: V-07641-18/19G
V-07641-18/19H
O-12635-19/19B
O-12635-19/19C

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Virtual Proceeding
111 Dr. Martin Luther King Jr. Boulevard
White Plains, NY 10601
January 26, 2021

BEFORE: HONORABLE WAYNE A. HUMPHREY, Part 2

APPEARANCES: MASSIMO DIFABIO, ESQ.
Attorney for Stephen Grant Russell

JENNIFER MARIE M. JACKMAN, ESQ.
Attorney for the Child

TARA KATELYN WALSH, Petitioner/Respondent, Pro Se

ALSO PRESENT: Stephen Grant Russell, Respondent/Petitioner

Digital Recorded Proceeding, Valeri Wilson, Transcriber

Public copy: the child's legal name is shown as E.V.; private street addresses are removed. Otherwise unchanged.

(12:00:39 p.m.)

COURT OFFICER: Good day, Judge. This is number 15 through 26 on today's calendar in the matter of Walsh and Russell. Counsel, please state your appearance.

UNIDENTIFIED VOICE: That's you, Max.

COURT OFFICER: You're on mute, Max. Still on mute.

MR. DIFABIO: Okay. For Respondent/Petitioner, Stephen Grant Russell, Max DiFabio, good morning, Your Honor.

MS. JACKMAN: Good morning, Your Honor, Jennifer Jackman, attorney assigned to represent the child, E.V. [redacted]

COURT OFFICER: Thank you. Ms. Walsh, can you please raise your right hand? Do you swear or affirm to tell the truth?

T A R A K A T E L Y N W A L S H, a witness herein, was examined and testified as follows:

MS. WALSH: I do.

COURT OFFICER: Please state your name and address unless confidential.

MS. WALSH: [redacted], Chappaqua, New York, 10514.

COURT OFFICER: Thank you. Mr. Russell, do you swear or affirm to tell the truth?

S T E P H E N G R A N T R U S S E L L, a witness herein, was examined and testified as follows:

MR. RUSSELL: I do.

COURT OFFICER: Please state your name and address unless confidential.

MR. RUSSELL: Stephen Russell. My address is confidential.

COURT OFFICER: Okay. Judge, you have the floor.

THE COURT: All right. Mr. DiFabio, has your client filed the appropriate papers in court to establish that his address should be confidential?

MR. DIFABIO: Your Honor, I believe -- I have information to believe -- I believe I had a while ago with Judge Horowitz. Either I filed them or prepared them for my client's signature; I'm not entirely sure.

THE COURT: Well, Counsel, I did a deep dive in this court file yesterday, and I don't see it in there anywhere.

MR. DIFABIO: Then it is what it is, Judge, but I did -- I do recall preparing those documents. Whether or not --

THE COURT: So then he needs -- he needs to put his address on the record, please.

MR. RUSSELL: I'd rather keep it confidential per the permanent restraining order against her in San

Francisco court, not in your file.

THE COURT: Sir, I'm in New York. I'm not in California. Please put your name and your address on the record, sir.

COURT OFFICER: Mr. Russell, Judge asked you to put your current address on the record.

It appears Respondent's ignoring you, Judge.

THE COURT: Mr. DiFabio?

MR. DIFABIO: Yes, Judge. Mr. Russell, can you hear me? Steve? Hello?

MR. RUSSELL: (Inaudible) you, Max.

MR. DIFABIO: Steve, the judge -- because we have not filed an Order of Confidentiality, the judge requires -- the law requires that you put your address on the record. The judge is requesting that you do so.

MR. RUSSELL: Okay. Please provide him my address.

COURT OFFICER: He wants you to put it on the record, sir, now.

MR. DIFABIO: Judge, I'm sorry, I'm not hearing completely well.

COURT OFFICER: Mr. DiFabio, he wants you to provide to the Court separately. I just advised him that Judge wants him to put on the record right now in open court.

MR. DIFABIO: Steve, I can't do that for you. The judge wants you to do it.

COURT OFFICER: Still nothing, Judge.

THE COURT: (Inaudible). Mr. Russell, do you hear the Court?

MR. RUSSELL: Yeah, (inaudible) so, Max, you should have it but (inaudible) it's [redacted], [redacted], Novato, N-o-v-a-t-o, California, 94949. Okay? It's definitely in effect where this should be kept confidential per my (inaudible) restraining order.

THE COURT: Sir --

MR. RUSSELL: (Inaudible).

THE COURT: -- sir, don't tell me why (inaudible), please. Sir, don't tell me what's inappropriate. All right. So this is this Court's first opportunity to have all the parties before myself but I've had the opportunity to review the entire court file, so I have a lot of stuff that's pending at this point here to say. And, Ms. Jackman, I'll let you go first because I think I saw your Order to Show Cause first; is that correct?

MS. JACKMAN: Yes, Your Honor, I did file an Order to Show Cause on about December 16th, 2020, with respect to my fees. Mr. DiFabio filed a Notice of Motion,

I believe dated January 19th, 2021, seeking dismissal of my application and for failure to comply with Parts 136 and 137 of the Part Rules.

So as Your Honor knows, I'm the AFC assigned by the Court on this matter. The order with which I am seeking enforcement is an order directing payment of the AFC that was actually entered on consent of the parties when being represented by counsel. This is prior to Mr. DiFabio's time on this case on or about November 29th, 2018.

The Fee Dispute Resolution Program pursuant to Part 137.1 of the Rules doesn't apply to AFCs. I don't have a relationship with Mr. Russell that's based upon a retainer; it is based up on a court order. Mr. Russell is not my client. My client is [redacted] and I think it's 137.1(b)(5)(sic) clearly states that the rules do not apply to fees where it's been ordered pursuant to a statute or an order such as this, so I'm going to put in a written response to the motion. This is a fee application and Mr. Russell is filing papers all over the place so that I can spend more fees to defend myself which I did not want to do. I ask that Mr. Russell's motion be dismissed and that Your Honor grant my application in its entirety. It is for fees in the sum of $24,360.33, as of November 30th, 2020, as I outlined in my motion. The rules are attached.

They're sent directly to Mr. Russell. They were sent to his accountant, and they were sent to his attorney every single month. He has asked for duplicate copies and they have been re-sent, and we've received no payment.

So I'd ask Your Honor to enter judgment at this time against Mr. Russell for nonpayment.

THE COURT: So (inaudible) Mr. DiFabio does, Ms. Walsh, I see that you're not represented at the present time; is that correct?

MS. WALSH: Your Honor, Mr. Guttridge asked to resign and since then I haven't had counsel because the (inaudible) are pretty much closed. (Inaudible) open them again so I would like to ask the Court for counsel again because I can't find anyone (inaudible).

THE COURT: All right. So due to the COVID-19, I'm going to grant your application and assign an 18b attorney to assist you in these matters today.

MS. WALSH: Okay. Thank you, Your Honor.

THE COURT: In addition, ma'am, you did file a motion, so I'm not sure if I should allow you to take a position regarding Ms. Jackman's Order to Show Cause or Mr. DiFabio's Notice of Motion until counsel's (inaudible) your view on -- for the position, so we're going to hold your (inaudible) as you have no attorney present.

Mr. DiFabio?

MR. DIFABIO: Yes, Judge. Briefly, when Ms. Jackman was assigned to the matter, I was not -- I was not representing Mr. Russell at that time, and she was assigned into (inaudible) by my client subject to reallocation at the time of trial. However, Your Honor, Judge Horowitz dismissed this case without a trial. We never had the opportunity to present or --

THE COURT: She dismissed -- she dismissed it because he defaulted and failed to appear in court; is that right?

MR. DIFABIO: That's correct. He failed to appear but he did not default, is our position, Your Honor.

THE COURT: That's your position but Judge Horowitz felt it was a default and dismissed those petitions and granted (inaudible) requested.

MR. DIFABIO: Correct, Judge. There's an appeal pending presently. It's fully submitted at the Appellate Division 2nd with respect to that issue.

THE COURT: Okay.

MR. DIFABIO: So, Judge, so one, the fees were never reallocated for whatever reason. Two, it is our belief, based on research, that Parts 136 and 137 do control here. Mr. Russell has made efforts at reaching out to Ms. Jackman and her firm to discuss the billing and to work out certain aspects, (inaudible) but I think Ms.

Jackman would concur on that. And for that reason, Judge, we think that this Court lacks subject matter jurisdiction, and we would ask you to grant our motion and dismiss Ms. Jackman's Order to Show Cause, respectfully.

THE COURT: All right. So what I'm going to do is allow Ms. Walsh's attorney to be assigned. I want to have their input and the Court will issue a decision on both motions.

MS. JACKMAN: Your Honor, (inaudible) going to be requiring a bit more expense for me. I will do that if Your Honor so directs.

THE COURT: All right. Ms. (inaudible) assist this Court in making an informed complete decision.

MS. JACKMAN: Yes, Judge, of course.

MR. DIFABIO: Your Honor, may I ask a question, please?

THE COURT: Yes, you may.

MR. DIFABIO: Ms. Walsh and I, to her credit, have been discussing a possible settlement of all issues in this case. So I'm going to assume you're going to assign counsel today, so our communications, so she understands, I can no longer speak to her going forward.

MS. WALSH: That's fine.

MR. DIFABIO: Okay.

MS. WALSH: Your Honor, if I may speak?

THE COURT: Yes, you may, ma'am.

MS. WALSH: 'Cause there's a few things. So I was recently granted to have my address confidential from New York State. I applied, so I forget the program in Albany. And I filed an affidavit with the Court so I would just ask for that confidentiality. (Inaudible) but I read on the affidavit that if exempted, you know, the confidentiality from New York State that it's effective without an affidavit, so I just wanted to confirm with the Court that I can from this point forward keep my address confidential.

THE COURT: When did you file that, ma'am?

MS. WALSH: I filed that at the end of last week. I was kind of having a little bit of trouble because the clerk wasn't picking up the phone, so I sent it to virtual court (inaudible).

THE COURT: (Inaudible) don't have it, ma'am.

MS. WALSH: Yeah.

THE COURT: All right. So I don't think there's much we can do today at this point. Now, Mr. DiFabio, I do see that you have a Motion to Vacate the judgment issued by Judge Horowitz; is that correct?

MR. DIFABIO: That's correct, Your Honor.

THE COURT: So that's --

MR. DIFABIO: All of this is procedural, by the

way.

THE COURT: What does that mean, Counsel?

MR. DIFABIO: Well, we had to take certain steps to -- pursuant to the appeal and the other issues in this case, we had to file these -- these procedures. Hopefully, Ms. Walsh and I were on our way towards trying to resolve this. Hopefully, her new attorney will contact me and all of this will be made unnecessary; that's my hope.

THE COURT: All right. So, Mike, can we get an adjourn date on -- has Ms. Jackman been part of these settlement discussion and?

MS. JACKMAN: I have not.

THE COURT: Okay.

MS. WALSH: But I can tell Your Honor I think a settlement is not really possible (inaudible) so.

THE COURT: Okay. What's the earliest date we can get, Mike? I don't want to go too far out.

COURT OFFICER: (Inaudible).

THE COURT: All right. (Inaudible) April 27th (inaudible) what's available.

COURT OFFICER: The 27th at 3:00?

MR. DIFABIO: One moment, please, Judge?

THE COURT: Uh-huh.

MR. DIFABIO: April 27th. That's fine, Judge.

THE COURT: 3:00?

MS. JACKMAN: That's fine.

MS. WALSH: That's fine.

THE COURT: So I enter (inaudible), Mr. Russell. Mr. Russell, you need to make sure on the next date that you have access to a computer or Apple, Mac, whatever, some way so you can appear remotely on these proceedings. Okay? Do you understand that, sir?

COURT OFFICER: Sir, the judge is speaking to you.

MR. RUSSELL: (Inaudible).

THE COURT: All right. Thank you. (Inaudible) currently, sir, as you are aware, if you fail to be present on the return date, this Court can proceed in your absence. Do you understand that?

MR. RUSSELL: (No audible answer.)

THE COURT: Can't hear you again, sir.

MR. RUSSELL: Yep, yep, I understand that.

THE COURT: All right. So that means that if you fail to appear on the return date, this Court can issue judgment, dismiss your petitions just like Judge Horowitz did in the past. Do you understand that, sir?

MR. RUSSELL: (No audible answer.)

THE COURT: I can't hear you again, sir.

MR. RUSSELL: (Inaudible) available by phone or (inaudible).

THE COURT: You are to be available by (inaudible), not by phone, sir.

MR. RUSSELL: If that's the law, I'll be available.

THE COURT: That's the law of this case, sir. We're not going to play any games with you back and forth. So, Mr. DiFabio, you should take the opportunity to (inaudible) on the return date, to (inaudible), to schedule (inaudible) meeting with your client in your office or whatever format you need so he can be here remotely.

MR. DIFABIO: I will do my best, Judge.

THE COURT: Thank you very much, Mr. DiFabio.

MR. DIFABIO: You're welcome.

THE COURT: Thank you, and have a good day.

MR. DIFABIO: Thank you.

MS. WALSH: Sorry, Your Honor, just because I've had trouble reaching the clerk when I've tried to call. Will the Court send me an email with my new attorney's information or how should I?

THE COURT: They'll reach out to you. We're going to make an assignment today and they should be reaching out to you within the next week or so. If you haven't heard from them in a week, send an email to (inaudible) one of the clerks will ensure that you get the name and telephone number for the person representing you.

MS. WALSH: Okay. Thank you, Your Honor.

THE COURT: All right. Have a good day. Enjoy.

MS. JACKMAN: Thank you, Judge.

MS. WALSH: Thank you, bye.

MR. DIFABIO: Take care, Jennifer. (Inaudible). Bye.

(12:16:18 p.m.)[PROCEEDING CONCLUDED]

CERTIFICATE: I, Valeri Wilson, certify the foregoing transcript of proceedings held at White Plains County Family Court, NYS, Walsh vs. Russell, File #154703, was prepared using the required electronic equipment and is a true and accurate record of the proceedings.

Signature: Valeri Wilson Date: January 31, 2021

Electronic signature

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